LEMKE v. MERS, INC., et al.

21CV45420

PLAINTIFF'S MOTION TO DEEM RFAS ADMITTED

This is a wrongful foreclosure action. Before the Court is plaintiff's unopposed motion to deem admitted matters contained in a first set of Requests For Admission served upon defendant LoanCity, Inc.

On 07/28/21, plaintiff served a first set of Requests for Admission on said defendant.

Pursuant to CCP §§ 1013 and 2033.250, defendant had 32 days from the mailing to provide a verified written response, making the due date for compliance on 08/30/21. Defendant did not timely (or ever) serve responses. (See Freshman Decl Para 3.)

Pursuant to CCP §2033.280(b), the party propounding RFAs may "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." The trial court "shall" grant the motion unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response in substantial compliance with Section 2033.220. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777-778.) Trial courts have no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party. (See *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 971.)

Based on the foregoing, Plaintiff's motion is GRANTED. The twenty (20) matters contained in the RFAs are hereby deemed admitted, subject to counsel's confirmation that defendant did not serve substantially complaint responses before the hearing. In addition to the order deeming admitted all matters within the RFAs, the moving party is entitled as a matter of law to monetary sanctions. (CCP §2033.280(c).) Counsel for plaintiff requested a total of $625.00 in fees and $186.00 in costs. These amounts are reasonable under the circumstances, in particular noting the bulk of fees were at a paralegal rate. Defendant LoanCity, Inc. is ordered to pay a total of $811.00 to plaintiff, by and through counsel, by the close of business on December 23, 2021.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

RISCHBIETER v. BLUE LAKE SPRINGS HOA

15CV40810

DEFENDANT'S MOTION FOR ATTORNEY FEES

This civil action involves a dispute over HOA monthly assessments, and whether an assessment per lot (rather than per member) was proper. Before the Court this day is an unopposed defense motion for both contractual and statutory attorney fees (see Civil Code §§ 1717 and 5975) related to defendant prevailing on appeal.

Code of Civil Procedure §§ 1032(b) and 1033.5(a)(10) collectively provide that the prevailing party in a civil action may recover, as a matter of right, attorney's fees when authorized by contract or statute. The "prevailing party" is the party with a net monetary recovery or for whom judgment is entered. (CCP §1032(a)(4).) There is no question here that defendant is the prevailing party, having secured both a judgment in its favor (see 06/18/18 Judgment), as well as in the instant matter an unqualified affirmance before the Third District Court of Appeal. Defendant was previously awarded fees of $263,361.97 in the underlying case and is entitled to additional fees incurred related to the appeal, as awarded by 3DCA..

Where a legal basis for the recovery of fees exists, courts will weight various factors to reach a "reasonable" amount to award – commonly referred to as the lodestar. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Courts begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess whether there was padding, over-staffing, duplication or marked inefficiency. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 272.) Other factors courts consider include the development of the case, the complexity of the issues, and how long the court estimates it should have taken to perform the services. (*Maughan v. Google Technology, Inc.* (2006) 143 Cal.App.4th 1242, 1249.) After the courts determine the number of hours reasonably necessary to the conduct of litigation, the final step is to determine an appropriate hourly rate for the work performed, based on market trends in the particular region for that kind of work. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 619; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

Defense counsel proffers an hourly rate between $305 and $395 per hour, and a billing summary reflecting approximately 280 hours of attorney time. Although this Court often reduces hourly fees to the community going rate of $300, and notes a number of time entries for analyzing and strategizing, and what amounts to several weeks' of "drafting" the appellate brief, the Court declines to second guess work required to prevail on appeal as the appellate environment is quite different from trial court proceedings. Noting the requested attorney's fees on appeal are roughly 1/3 of those previously awarded on the underlying case, the Court declines to second guess the current claims Thus, defendant